

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: April 27, 2026 at 1:30 pm [updated 4/27/26 at 11:30am]

Rulings Posted: 4/22/26 at 4 pm, any rulings not posted then will be posted the morning of 4/27/26

#	Case Name	Tentative
202	<i>Medvei vs. Afridi</i>	The motion for attorneys’ fees and costs filed by defendant Ann L. Lakhman (Lakhman) is GRANTED IN PART to award Lakhman \$112,196.17 in fees and costs, consisting of \$109,575 in attorney’s fees plus \$2,621.17 in costs. Pursuant to Code of Civil Procedure section 425.16, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1).) Thus, “any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.” (<i>Ketchum v. Moses</i>

	(2001) 24 Cal.4th 1122, 1131.) “[A] defendant who brings a successful special motion to strike is entitled only to reasonable attorney fees and not necessarily to the entire amount requested.” (<i>Cabral v. Martins</i> (2009) 177 Cal.App.4th 471, 491.) “The California Supreme Court has upheld the lodestar method for determining the appropriate amount of attorney fees for a prevailing defendant on an anti-SLAPP motion.” (<i>Mann v. Quality Old Times Serv., Inc.</i> (2006) 139 Cal.App.4th 328, 342.) Under this method, a court assesses attorneys’ fees by first determining the time spent and the reasonable hourly compensation of each attorney. (<i>Ibid.</i>) The court next determines whether that lodestar figure should be adjusted based on various relevant factors, such as the novelty and difficulty of the questions involved, the skill displayed in presenting them, the success or failure, and any other circumstances in the case. (<i>Ibid.</i>, citing <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132.) “A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 38.) “[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (<i>Id.</i> at 39.) Here, Lakhman is the prevailing party on the anti-SLAPP motion as the Court of Appeal reversed the denial of her anti-SLAPP motion and this court entered an order granting said motion on February 2, 2026. As such, Lakhman is entitled to recover reasonable attorney’s fees under section 425.16,
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	subdivision (c) for fees incurred in connection with the anti-SLAPP motion. Plaintiff argues in the Opposition Lakhman was not the prevailing party at the time of “working up the appeal,” as the motion was initially denied, and thus the fees incurred on the appeal should be excluded. Plaintiff cites no authority holding fees incurred in the successful appeal of an initially unsuccessful anti-SLAPP motion are not recoverable under Section 425.16(c). To the contrary, “[w]hen a contract or a statute authorizes the prevailing party to recover attorney fees, that party is entitled to attorney fees incurred at trial and on appeal.” (<i>Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc.</i> (2012) 211 Cal.App.4th 230, 250; see also, <i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2006) 136 Cal.App.4th 464, 479 [reversing trial court order denying defendants’ anti-SLAPP motion and noting “defendants are entitled to their reasonable attorney fees on appeal”].) Lakhman may thus recover reasonable attorney’s fees under Section 425.16(c) for fees incurred in connection with the anti-SLAPP motion and the appeal. The court finds the hourly rates requested by Lakhman’s counsels to be reasonable given counsels’ experience and the nature of the dispute. (<i>See generally</i>, Declarations of David D. Samani, Ryan A. Drossel, and Corinne C. Bertsche.) Plaintiff does not dispute the reasonableness of the hourly rates requested. In terms of the time expended, Plaintiff’s argument the billing invoices are inadmissible fails. Mr. Samani’s declaration properly authenticates the billing invoices. (See Samani Decl., ¶¶ 1-2, 5-6; see also, <i>Association for Los Angeles Deputy Sheriffs v. Macias</i> (2021) 63 Cal.App.5th 1007, 1031 [information in exhibits to attorney declaration
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“provided under oath and compiled under [an attorney’s] direction from his personal review of his firm’s billing records[] [are] admissible.”.)
Moreover, each counsel attests to the hours personally incurred on the matter and the nature of the tasks performed by each. (See Samani Decl., ¶¶ 5, 8; Drossel Decl., ¶¶ 5-6; Bertsche Decl., ¶ 4.)
Thus, even in the absence of the billing invoices, counsels’ declarations would provide the court with sufficient evidence to determine the reasonableness of the fees requested. (See *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 698-699.)

Plaintiff’s request for a downward lodestar adjustment is also rejected. Lakhman obtained a reversal of the denial of her anti-SLAPP motion. This cannot be deemed a “lackluster success.” Nor does the fact Lakhman initially did not prevail on the anti-SLAPP motion reflect a lack of skill as Plaintiff argues, especially considering the trial court found Lakhman met her burden on prong one of the anti-SLAPP analysis.

Additionally, a denial of the fees motion altogether as requested by Plaintiff is not warranted. While the total amount of fees sought is substantial, the amount of time incurred is generally supported by counsels’ declarations and the detailed billing records. The fees requested are not “outrageously unreasonable” so as to warrant a complete denial of the motion. (*Serrano v. Unruh* (1982) 32 Cal. 3d 621, 635.)

In terms of Plaintiff’s argument the time spent on the matter is unreasonably padded, Plaintiff failed to point to any specific time entries he claims are unreasonable. Plaintiff simply argues generally the hours spent are inflated for the nature of this case and the work performed and he and his counsel could have spent far less hours on the anti-SLAPP motion, the appeal and this fees motion. Plaintiff’s

general argument fails to meet his burden of demonstrating the unreasonableness of the claimed fees. “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

The anti-SLAPP motion here was not a “simplistic” motion as Plaintiff argues. Although the motion pertained to only one cause of action for defamation and two alleged statements by Lakhman, multiple arguments were raised by both parties as to both prongs of the anti-SLAPP analysis. The appeal likewise involved numerous issues with the Court of Appeal inviting the parties to submit supplemental briefing on a certain issue.

However, there does appear to be some overbilling here as 48 hours for the anti-SLAPP motion and 158.7 hours for the appeal is excessive. The Court will thus reduce the fees by 10% to account for this overbilling. This results in a reduction of \$12,475. In addition, due to redactions on certain time entries, it cannot be determined whether the fees sought were reasonably incurred in connection with the anti-SLAPP motion. This consists of various entries for “correspond via email with [redacted]” or “emails with [redacted]” which are contained throughout the billing invoices. The time incurred for these entries will be deducted. This results in a reduction of \$2,700.

Accordingly, Lakhman is awarded fees against Plaintiff in the reduced amount of \$109,575.

		Lakhman’s unchallenged request for costs in the sum of \$2,621.17 as reflected in the memoranda of costs is granted. (ROA 353, 363.) The court declines to consider Lakhman’s supplemental reply declaration as it is new evidence improperly submitted with the reply. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-38). Plaintiff’s objection on this ground is thus SUSTAINED. Lakhman is ordered to file a proposed order in accordance with this ruling by 5/4/26. Lakhman shall give notice.
204	<i>FansMGMT, LLC vs. Chung</i>	The “Motion to Stay Proceedings Pending Determination by The California Labor Commissioner,” filed on 12/12/25 by Defendant Nicole Chung (Chung) is GRANTED. The Motion demonstrates that Chung filed a “Petition to Determine Controversy” with the CA Labor Commissioner on 11/26/25 against FansMGMT, LLC and Aaron Andrew, alleging that they acted as unlicensed talent agents in their dealings with Chung, and that the contracts at issue in this action are therefore unenforceable. (ROA 63, Ex. 1.) The determination on that Petition appears to be critical to the claim presented here. (See <i>Styne v. Stevens</i> (2001) 26 Cal.4th 42, 51 [“an unlicensed person’s contract with an artist to provide the services of a talent agency is illegal and void.”] and Labor Code §1700.44 subd. (a) [such a claim is to be addressed by the Labor Commissioner].) Good cause for an interim stay, pending the determination on that Petition, has thus been shown here.

		As the Motion is unopposed, plaintiff FansMGMT, LLC has not disputed that such a stay is warranted under these circumstances. Chung shall give notice.
205	<i>Klaas vs. Lyft, Inc.</i>	Plaintiff Adrienne Klaas' motion for trial preference is CONTINUED to 5/26/26 at 1:30pm in Dept. C24. The moving brief describes Plaintiff's health and medical condition in great detail, including a description of her orthopedic and internal organ injuries as well as her subsequent decline in her physical and cognitive health, which require ongoing medical treatment and assistive devices. (Motion, pp. 5-6.) However, these details are made on counsel's information and belief, and are not backed by medical records. Nor is there any admissible evidence showing Plaintiff's age. No specific showing of risk of death or inability to testify before trial. While <i>Fox v. Superior Court</i>, (2018) 21 Cal.App.5th 529, 533–534, allows attorney declarations, courts still require particularized facts showing necessity, not just seriousness of injury. At least seven (7) days before the next hearing, Plaintiff shall: 1) produce admissible evidence of Plaintiff's age; and 2) submit a declaration made under penalty of perjury with specific information as to Plaintiff's medical diagnosis and prognosis, preferably backed by medical records. (See Code of Civ. Proc. § 36, subd. (a), § 36.5.) Plaintiff shall give notice.
207	<i>Alianza Translatinx vs. City of</i>	The motion for attorneys' fees filed by petitioners Alianza Translatinx; C.A., a minor by and through his GAL, E.S.; H.P., a minor by and through her GAL C.W.; and Erin Spivey (collectively,

	<i>Huntington Beach</i>	Petitioners) is GRANTED IN PART to award Petitioners reduced attorneys’ fees of \$959,853.73. The request for judicial notice filed by respondents City of Huntington Beach; Huntington Beach City Council; and Ashley Wysocki (collectively, Respondents) is GRANTED. (Evid. Code § 452(d); <i>People v. Hill</i> (1998) 17 Cal.4th 800, 848, fn 9.) Respondents’ evidentiary objections are OVERRULED. <u>Entitlement to Attorneys’ Fees</u> Petitioners have satisfied the requirements of Code of Civil Procedure section 1021.5. (Code Civ. Proc., § 1021.5.) Petitioners are the “successful party” in this matter in that the court granted their petition for writ of mandate. This action also resulted in the enforcement of an important right affecting the public interest in that it sought to enforce the California Freedom to Read Act, which promotes freedom of expression and the right to receive information, which in turn are fundamental rights under both the United States and California Constitutions. (See Ed. Code, § 19801, subd. (d); U.S. Const., Amend. I; Cal. Const. art. 1, § II.) The action also conferred a significant benefit on the general public in that it benefits any minor in the City who desires unrestricted access to non-obscene materials in the library’s collection. The necessity and financial burden of private enforcement also make a fee award appropriate. Petitioners attempted to resolve the dispute before filing this lawsuit by sending a demand letter to the City but no resolution was reached. (See Pet. ¶¶ 33, 71.) This supports a determination the litigation was necessary. (See <i>Vasquez v. State</i> (2008) 45 Cal.4th 243, 252 [failed attempts to settle can help to demonstrate that litigation was necessary].) In addition, because Petitioners were not seeking
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	monetary relief, they have no pecuniary interest in the outcome of the litigation and thus the financial burden of private enforcement makes a fee award appropriate. (See <i>Press v. Lucky Stores</i> (1983) 34 Cal.3d 311, 321.) Respondents contend the relief obtained was the result of Measure A, which repealed Ordinance No. 4318 prior to judgment. The Court previously rejected Respondents’ mootness argument in its ruling on the petition for writ of mandate. (ROA 128.) The Court finds no basis to revisit that determination in the context of this fee motion. A petitioner may satisfy section 1021.5 where the litigation was a catalyst or substantial factor in achieving the relief obtained. (<i>Vasquez v. State of California</i> (2008) 45 Cal.4th 243, 250–252.) The timing of the repeal following initiation of this action supports such a finding. In addition, the writ provided independent judicial relief. Respondents make no other argument to refute Petitioners have satisfied the requirements of section 1021.5. Petitioners may thus recover reasonable attorneys’ fees under section 1021.5 as the successful parties. <u>Lodestar Method</u> The California Supreme Court has confirmed the lodestar method applies when a party is entitled to attorneys’ fees under section 1021.5. (<i>Press v. Lucky Stores</i> (1983) 34 Cal.3d 311, 321-322.) This “requires the trial court to first determine a ‘touchstone’ or ‘lodestar’ figure based on a ‘careful compilation of the time spent and reasonable hourly compensation for each attorney ... involved in the presentation of the case.’ (Citation.) That figure may then be increased or reduced by the application of a ‘multiplier’ after the trial court has considered other factors concerning the lawsuit.” (<i>Id.</i> at p. 322.)
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	“A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 38.) “[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (<i>Id.</i> at 39.) Petitioners established the reasonableness of the hourly rates requested by counsel. Although high, the hourly rates requested are well supported by the declarations of Petitioners’ counsels Ryan M. Kendall, Andrew J. Thomas, David Loy, and Peter Eliasberg, as well as the expert declaration of Carol Sobel. (See ROA 187, 188, 189, 190, 192; see also, <i>Baer v. Tedder</i> (2025) 115 Cal.App.5th 1139, 1160-1161 [attorneys’ declarations based on their years of experience that firm’s standard billing rates are consistent with average billing rates for similarly situated firms found sufficient to establish reasonableness of hourly rate].) The Court adopts Petitioners’ Reply figures as the operative lodestar amounts for purposes of calculation: • Jenner & Block LLP: \$367,213.90 • First Amendment Coalition: \$107,119.13 • Community Legal Aid SoCal: \$456,099.27 • ACLU Foundation of Southern California: \$269,384.85 TOTAL OPERATIVE LODESTAR: \$1,199,817.15 The Court finds this figure is supported by counsel declarations, billing records, and reply-stage corrections.
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Lodestar Multiplier/Reduction

The court determines the requested multiplier is not justified on the record presented and thus denies the request for a 1.25 multiplier. The lodestar rates adequately compensate for contingency risk and the nature of the litigation.

In terms of hours expended, Respondents argue the amount of attorney fees sought is unreasonably inflated and, based on this, the motion should be denied altogether. While the total amount of fees sought is substantial, the amount of time incurred is supported by counsels' detailed declarations and the detailed billing records. The fees requested are not "outrageously unreasonable" to warrant a complete denial of the motion. (*Serrano v. Unruh* (1982) 32 Cal. 3d 621, 635.)

Respondents also argue if the court does not deny the motion, it should reduce the fees substantially due to excessive overstaffing and redundant work, vague and block-billed time entries, and because Petitioners improperly seek fees for clerical and administrative tasks. With respect to block-billing, the counsel's declarations provide sufficient detail regarding the tasks performed to allow the court to determine the reasonableness of the fees sought. With respect to clerical and administrative tasks, the entries cited by Respondents do not clearly establish that the work performed was purely clerical or administrative. Respondents have not shown any reduction is warranted based on these two arguments.

However, with respect to excessive overstaffing and redundant work, Respondents are correct the fee award should be reduced due to inefficiencies caused by overstaffing. (See *Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 272 [finding "simultaneous representation by multiple law firms posed substantial risks of task padding, over-

	conferencing, attorney stacking...and excessive research”].) Here, ten attorneys across four organizations worked on this case, billing more than 1,300 hours of work on the matter for litigation that lasted 8 months. A review of the billing records shows instances of inefficiencies and duplicative work resulting from this overstaffing. For example, each organization billed numerous hours for legal research, communications with co-counsels, and drafting or editing the same pleadings and briefs. Due to the substantial inefficiencies caused by overstaffing, the court concludes that a 20% reduction to the adjusted lodestar fees, as reflected in the motion and supporting declarations, is appropriate. The Court exercises its discretion to impose a reduction based upon its review of the billing records and declarations submitted. This results in the following recoverable amounts for each organization representing Petitioners: • \$293,771.12 for Jenner & Block • \$85,695.31 for First Amendment Coalition • \$364,879.42 for Community Legal Aid SoCal • \$215,507.88 for ACLU Foundation of Southern California The total fee award to Petitioners is thus \$959,853.73. The Court notes that minor numerical differences between intermediate calculations and the final award result from rounding at the firm-by-firm calculation stage. The discrepancy is de minimis, does not affect the Court’s exercise of discretion, and does not alter the total award. Petitioners shall prepare a proposed order in accordance with this ruling.
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		Petitioners shall give notice.
208	<i>Gorges vs. FirstService Residential California, LLC</i>	Plaintiff Candice Gorges’ unopposed motion for leave to file the First Amended Complaint is GRANTED. The motion complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (See Code of Civ. Proc. § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [applying “a policy of great liberality in permitting amendments”]; see also Declaration of Sacha Pomares ¶¶ 16-22.) Plaintiff shall file and serve her First Amended Complaint, as reflected in the supporting declaration of Sacha Pomares at Exhibit 1, by 5/4/26. Plaintiff shall provide notice.
209	<i>Phol vs. Synched, LLC</i>	The motion by attorney Christopher J. Keller to be relieved as counsel for defendant Synched, LLC is DENIED, as set forth herein. California Rules of Court, Rule 3.1362 sets forth the requirements for an attorney moving to withdraw. Rule 3.1362(e) requires the proposed order be lodged with the Court along with the moving papers and be on form MC-053. Rule 3.1362(d) requires the client be served with the proposed order. There is no evidence that Mr. Keller has either served or filed the required proposed order. Additionally, in the Declaration (ROA 31), Box 3(a)(1) is checked which says the “attorney has personally served the client with copies of the motion papers filed with this declaration. A copy of the proof of service will be filed with the court at least 5 days before the hearing.” However, Mr.

		Keller has not filed a proof of service showing personal service of the documents on the client. Finally, there is no proof of service showing service of the motion on plaintiff's counsel. Accordingly, the motion is DENIED, without prejudice.
210	<i>Flexpoint, Inc. vs. Felix</i>	Defendant Brenda Felix's (Defendant) demurrer to the complaint of plaintiff Flexpoint, Inc. (Plaintiff) is OVERRULED and the motion to strike is DENIED. Defendant shall file an answer to the complaint within 15 days. Defendant's request for judicial notice is DENIED. <u>Demurrer</u> Defendant demurs to each cause of action in the complaint on the grounds the pleading fails to state facts sufficient to constitute a cause of action and is uncertain. (Code Civ. Proc., § 430.10(e), (f).) Defendant also demurs on the ground of "lack of standing and improper purpose." Defendant also demurs based on the court's previous denial of Plaintiff's application for temporary restraining order (TRO). <i>Failure to State Facts Sufficient to Constitute a Cause of Action:</i> The pleading sets forth sufficient factual allegations showing how Defendant's conduct supports the statutory and tort claims asserted. (See Compl., ¶¶ 23-24, 31-35, 39-40, 45-47, 52.) The complaint also contains sufficient allegations of damages resulting from Defendant's conduct. (See Compl., ¶¶ 23-25, 27, 36, 42, 48, 54.) These allegations are sufficient at the pleading stage. "To

survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Uncertainty: A demurrer for uncertainty will be sustained only where the complaint is so poorly pled that a defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, the complaint is not so poorly pled that Defendant cannot reasonably respond.

Lack of Standing and Improper Purpose: Defendant contends Plaintiff is retaliating against Defendant for internal whistleblowing and attempting to circumvent administrative processes pending before the California Civil Rights Department. Defendant cites no authority showing this is a proper basis for a demurrer.

Prior Adjudication of TRO: Defendant contends because Plaintiff's TRO was previously denied based on the same facts, the complaint fails to state a cause of action. The court's ruling denying Plaintiff's TRO was not a final adjudication of the sufficiency of Plaintiff's allegations. Defendant cites no authority supporting her argument the denied TRO warrants dismissal of Plaintiff's causes of action. Code of Civil Procedure section 1008 concerns motions for reconsideration, not demurrer proceedings. *Gillies v. JP Morgan Chase Bank, N.A.* (2017) 7 Cal.App.5th 907, also cited by Defendant, did not hold a denied TRO mandates dismissal of a party's causes of action.

Motion to Strike

		“A notice of motion to strike a portion of a pleading <u>must</u> quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Ct. rule 3.1322(a).) Here, the notice of motion fails to identify or number consecutively the portions of the pleading sought to be stricken. It is thus unclear what specific portions of the complaint Defendant seeks to strike. Case management conference is continued from 4/27/26 to 6/8/26 at 8:45am in Dept. C24. Plaintiff shall give notice.
211	<i>Kuljis vs. Pagalidis</i>	The Motion for Consolidation or Stay of Related Unlawful Detainer Action filed on 1/23/26 by Plaintiff Anthony Michael Kuljis (Kuljis) is GRANTED IN PART. Kuljis has adequately complied with Rule 3.350 of the California Rules of Court. (See ROA 52.) Kuljis has also demonstrated that title to the subject real property is a primary issue in dispute in both this action and in the unlawful detainer proceeding at issue here (<i>Pagalidis v. Kuljis</i>, OCSC Case No. 2025-01527283). Under these circumstances, it is appropriate for this Court to issue a stay for that unlawful detainer proceeding until the issue of title is resolved in this action, as a successful claim to title by Kuljis would defeat the claim by Eugenia Pagalidis (Pagalidis) as to the right to possession. (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 385.) However, Pagalidis is entitled to an order for payments to be made in the interim. (Code of Civ.

	Proc. § 1170.5, subd. (c).) Pagalidis has shown that there is a reasonable probability that she will prevail in the unlawful detainer proceeding at issue here. (ROA 64, Demetri Pagalidis Decl., ¶¶ 3-7.) She is thus entitled to an order requiring Kuljis to deposit into court the amount of rent that would have otherwise become due and payable until that unlawful detainer action is resolved. That sum has been identified in the unlawful detainer action as \$1,330 per month. Kuljis is therefore ordered to deposit that sum into court on the first of each month, in accordance with Code of Civ. Proc. § 1170.5, subd. (c), for so long as Kuljis remains in possession pending the termination of the unlawful detainer action. Kuljis' Request for Judicial Notice is GRANTED under Evidence Code § 452 subdivision (d), as to the existence of the record, but not as to the truth of any disputed facts asserted therein. Kuljis' Evidentiary Objections are SUSTAINED as to the Demetri Pagalidis Decl., at ¶ 4, as to the last 3 sentences [foundation], but otherwise OVERRULED. Court continues the 5/11/26 CMC to be heard concurrently with the 5/18/26 motion at 1:30pm in Dept. C24. Kuljis shall give notice.
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